

SOLVED PRACTICE WORKBOOK

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

President and Vice-President: constitutional design



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Solved topic-specific MCQs

Solved UPSC PYQs

PYQ 1 - 2018 Prelims GS-I Q32

Question: With reference to the election of the President of India, consider the following statements:

1. The value of the vote of each MLA varies from State to State.
2. The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A.

Solution: Statement 1 is correct because MLA value depends on the State's 1971 population-to-elected-MLA ratio. Statement 2 is false because every elected MP has the same value regardless of House.

PYQ 2 - 2022 GS-II Q4

Question: Discuss the role of the Vice-President of India as the Chairman of the Rajya Sabha. (150 words, 10 marks)

Model answer: Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha; this presiding role, not the rare acting-presidential contingency, is the office's regular constitutional work.

The Chairman maintains order, interprets rules, decides points of order and admissibility, allocates proceedings under House rules and refers matters to committees. Though not a Rajya Sabha member, Article 100 gives a casting vote when votes are equal. Under paragraph 6 of the Tenth Schedule, the Chairman decides defection cases concerning Rajya Sabha members, subject to judicial review after *Kihoto Hollohan*. The Chairman neither votes initially nor certifies Money Bills, unlike the Lok Sabha Speaker's Article 110 function. Under Article 92, while the Vice-President's removal resolution is considered, he/she cannot preside and may speak but not vote.

As Rajya Sabha represents States and revises legislation, neutral rule enforcement is essential. Thus, the Chair's legal powers matter, but perceived impartiality is the foundation of their democratic legitimacy.

PYQ 3 - 2022 GS-II Q14

Question: Critically examine the procedures through which the Presidents of India and France are elected. (250 words, 15 marks)

Model answer: The two procedures reflect different executive designs. India's President is a nominal federal Head of State; France's President is a powerful actor in a semi-presidential system.

India uses an indirect electoral college of elected MPs and elected State, Delhi and Puducherry MLAs. Nominated members and MLCs are excluded. MLA votes are weighted by the 1971 population-to-seat ratio and MP value balances aggregate State and Union votes. PR-STV, a secret ranked ballot and preference transfers produce a majority-supported winner. The method embeds federal parity and avoids creating a direct rival mandate to the responsible Cabinet. Its weakness is democratic remoteness and complexity.

France uses direct universal suffrage. A candidate needs an absolute majority in the first round; otherwise the two leading candidates contest a second round. The method creates a clear nationwide personal mandate appropriate to a politically active President. However, direct presidential and legislative mandates can conflict, producing cohabitation or divided executive leadership.

Therefore, India's election privileges federal mediation and parliamentary logic; France privileges popular authorization and executive leadership. Neither procedure is superior without reference to the office it elects.

PYQ 4 - 2023 Prelims GS-I Q36

Question: Consider the following statements:

1. If the election of the President is declared void by the Supreme Court, all acts done before the decision become invalid.

2. Presidential election can be postponed because some Legislative Assemblies are dissolved and elections are pending.
3. The Constitution prescribes a time limit for presidential assent to a Bill.

How many statements are correct?

A. Only one B. Only two C. All three D. None

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: D.

Solution: All are false. Article 71(2) preserves acts already done; electoral-college vacancies do not invalidate/postpone the election; Article 111 fixes no assent deadline.

PYQ 5 - 2023 Prelims GS-I Q80

Question: Consider the following statements in respect of election to the President of India:

1. Nominated members of Parliament or State Assemblies are included.
2. Higher the number of elective Assembly seats, higher is each MLA's vote value.
3. Each Madhya Pradesh MLA has a higher value than each Kerala MLA.
4. Puducherry MLA value is higher than Arunachal Pradesh because its population-to-elective-seat ratio is higher.

How many statements are correct?

A. Only one B. Only two C. Only three D. All four

INFERRED ANSWER - NOT OFFICIALLY VERIFIED: A.

Solution: Only statement 4 is correct. Nominated members are excluded. Vote value depends on population divided by elected seats, so more seats do not mechanically increase value. Kerala's per-MLA value exceeds Madhya Pradesh's under the frozen data.

PYQ 6 - 2025 Prelims GS-I Q51

Question: With reference to Indian polity, consider the following statements:

1. An Ordinance can amend any Central Act.
2. An Ordinance can abridge a Fundamental Right.
3. An Ordinance can come into effect from a back date.

Which are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: C.

Solution: An ordinance has Act-like force and may amend a Central Act or operate retrospectively within constitutional limits. It is "law" under Article 13 and cannot abridge Fundamental Rights.

PYQ 7 - 2025 Prelims GS-I Q86

Question: Consider the following statements regarding the pardoning power of the President:

1. Its exercise can be subjected to limited judicial review.
2. The President can exercise it without advice of the Central Government.

Which is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A answer: A.

Solution: *Epuru Sudhakar* permits limited review for defects such as mala fides and non-application of mind. *Maru Ram* confirms that Article 72 is exercised on binding ministerial advice.

PYQ 8 - 2025 GS-II Q3

Question: Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are "preemptive pardons"? (150 words, 10 marks)

Model answer: Article 72 vests India's President with pardon, reprieve, respite, remission and commutation for Union-field offences, court-martial cases and every death sentence. The power is exercised on binding Council of Ministers advice (*Maru Ram*), may reassess merits (*Kehar Singh*) and is reviewable on narrow grounds such as mala fides, arbitrariness and non-application of mind (*Epuru Sudhakar*).

The US President's Article II power is personal rather than ministerially advised and extends to federal offences. It cannot cover State offences or cases of impeachment. Both powers are constitutionally broad but not legally limitless.

A US preemptive pardon covers completed conduct before charge, trial or conviction; it cannot license a future offence. India should not automatically import that doctrine because Article 72 operates within parliamentary government, ministerial responsibility and Indian review doctrine.

Thus, both are safety valves, but India's clemency is government-advised and reviewable, whereas the US model concentrates responsibility in the elected President.

Original MCQ loop

OM1. Electoral college

Who participates in electing the President?

A. Elected MPs plus elected State/Delhi/Puducherry MLAs B. All MPs and all MLAs C. Elected MPs and all State legislators D. Only elected MPs

Answer: A.

Article 54 excludes nominated members and all MLCs.

OM2. Vice-Presidential college

Which group elects the Vice-President?

A. Elected MPs only B. All members of both Houses of Parliament C. Elected MPs plus MLAs D. Rajya Sabha alone

Answer: B.

Nominated MPs participate; no MLA does.

OM3. MLA vote value

The value principally depends on:

A. Area and population B. Assembly strength only C. 1971 population relative to elected Assembly seats D. Current population only

Answer: C.

The constitutional freeze preserves the 1971 basis until relevant post-2026 census figures are published.

OM4. MP vote value

Which is correct?

A. Lok Sabha MPs have higher value B. Rajya Sabha MPs have higher value C. Value varies by State D. Every elected MP has the same value

Answer: D.

The aggregate MLA value is divided across elected MPs of both Houses.

OM5. President qualification

The candidate must be qualified for election to:

A. Lok Sabha B. Rajya Sabha C. Either House D. A State Assembly only

Answer: A.

The Vice-President uses the Rajya Sabha qualification.

OM6. President oath

It is ordinarily administered by the:

A. Prime Minister B. Chief Justice of India C. Vice-President D. Lok Sabha Speaker

Answer: B.

The senior-most available Supreme Court judge acts in the CJI's absence.

OM7. Re-election

The Constitution permits the President to be re-elected:

A. Once only B. Twice only C. Any number of times D. Never

Answer: C.

Unlike the US, India sets no numerical limit.

OM8. Casual presidential vacancy

The election must be held within:

A. One month B. Three months C. One year D. Six months

Answer: D.

The successor receives a fresh five-year term.

OM9. Impeachment initiator

A charge may be initiated by:

A. Either House of Parliament B. Lok Sabha only C. Rajya Sabha only D. The electoral college

Answer: A.

Both Houses have symmetrical initiation capacity.

OM10. Impeachment majority

Each decisive House resolution needs:

A. Simple majority B. Two-thirds of total membership C. Effective majority D. Special majority plus State ratification

Answer: B.

This is stricter than two-thirds present and voting.

OM11. Nominated MPs

Which statement is correct?

A. They elect and impeach B. They elect but cannot impeach C. They may impeach but do not elect the President D. They do neither

Answer: C.

Election and impeachment bodies differ.

OM12. Advice

After the President returns advice once and the Council reiterates it:

A. The Supreme Court decides B. Parliament votes C. The President may keep returning it D. The President must accept it

Answer: D.

The 44th Amendment creates one reconsideration, not a veto.

OM13. Hung Lok Sabha

The sound presidential test for appointing a PM is:

A. Likely ability to secure House confidence B. Personal ideological closeness C. Largest party in every circumstance
D. Rajya Sabha strength

Answer: A.

Floor confidence controls the discretion.

OM14. Ordinary Bill

If Parliament re-passes a returned ordinary Bill:

A. A referendum follows B. The President must assent C. A two-thirds override is needed D. The President may return it again

Answer: B.

Article 111 makes the second presentation conclusive.

OM15. Money Bill

The President may not:

A. Assent B. Withhold assent C. Return it for reconsideration D. Act on advice

Answer: C.

A Money Bill already required presidential recommendation before introduction.

OM16. Amendment Bill

After valid passage, presidential assent is:

A. Optional B. Returnable once C. Subject to States D. Obligatory

Answer: D.

The 24th Amendment removed veto uncertainty.

OM17. Pocket veto

Its textual basis is:

A. No fixed Article 111 deadline B. A six-month clause C. Rajya Sabha approval D. Supreme Court permission

Answer: A.

It is inferred from silence, not named as pocket veto.

OM18. Ordinance timing

Article 123 is available when:

A. Both Houses must be dissolved B. Both Houses are not simultaneously in session C. Lok Sabha alone is dissolved
D. A National Emergency exists

Answer: B.

One House not sitting is sufficient.

OM19. Ordinance end

Unless earlier disapproved/withdrawn, it ceases:

A. Immediately on reassembly B. After six months C. Six weeks after later reassembly date D. After one year

Answer: C.

Different reassembly dates use the later date.

OM20. Re-promulgation

D.C. Wadhwa characterises routine re-promulgation as:

A. Basic Structure B. Pocket veto C. Collective responsibility D. Fraud on the Constitution

Answer: D.

The executive cannot maintain ordinance rule without legislative consideration.

OM21. Article 72

Which falls uniquely within presidential clemency?

A. Court-martial sentence B. Every State-law offence C. Civil decree D. Legislative privilege

Answer: A.

The Governor has no court-martial clemency power.

OM22. Governor and death

A Governor may:

A. Pardon a death sentence B. Suspend/remit/commute but not pardon death C. Do nothing concerning death sentence D. Review a court-martial

Answer: B.

Article 161 is narrower than Article 72.

OM23. Clemency review

Epuru Sudhakar supports review for:

A. Incorrect evidence appreciation alone B. Any disagreement on mercy C. Mala fides/non-application of mind D. No grounds whatsoever

Answer: C.

Courts review decision-making defects, not sit as clemency appellate bodies.

OM24. VP removal

The resolution starts in:

A. Either House B. Lok Sabha C. Joint sitting D. Rajya Sabha

Answer: D.

Rajya Sabha needs an effective majority; Lok Sabha agrees.

OM25. VP casual vacancy

The Constitution requires election:

A. As soon as possible B. Within six months C. Within one year D. Only at Parliament's next session

Answer: A.

Article 68 has no fixed six-month outer limit.

OM26. Chairman vote

The Rajya Sabha Chairman ordinarily has:

A. A first vote only B. No first vote but a casting vote C. Two votes D. No vote under any circumstance

Answer: B.

During his own removal motion, even the casting vote is unavailable.

OM27. Acting President

While the VP acts as President:

A. He also chairs Rajya Sabha B. Lok Sabha Speaker chairs Rajya Sabha C. Deputy Chairman performs Chairman duties D. Rajya Sabha is suspended

Answer: C.

Article 64 prevents simultaneous discharge of Chair duties.

OM28. Article 143

The Supreme Court's advisory opinion is:

A. A constitutional amendment B. Always a binding decree C. An ordinance D. Advisory, not binding like an adjudicated decree

Answer: D.

The President may seek advice on qualifying questions of law/fact.

Remedial MCQs

R1. College reversal

Which pairing is correct?

A. President: elected MPs + specified elected MLAs; VP: all MPs B. President: all MPs; VP: elected MPs + MLAs C. Both: elected MPs only D. Both: MPs + MLAs

Answer: A.

Remember: P includes elected provinces; VP is Parliament only.

R2. Removal arithmetic

Vice-President removal in Rajya Sabha requires:

A. Simple majority B. Majority of all then members C. Two-thirds total membership D. Two-thirds present and voting

Answer: B.

This is the effective majority.

R3. Six-month trap

The explicit six-month casual-vacancy deadline applies to:

A. Vice-President only B. Both offices C. President only D. Neither

Answer: C.

VP vacancy is filled as soon as possible.

R4. Article 111

Which bill cannot be returned and cannot be vetoed?

A. Ordinary Bill B. Money Bill C. State Bill D. Constitution Amendment Bill

Answer: D.

Money Bill cannot be returned but assent may theoretically be withheld; amendment assent is obligatory.

R5. Void election

Acts done before the Supreme Court voids a presidential election:

A. Remain valid B. Automatically vanish C. Need parliamentary ratification D. Need CJI approval

Answer: A.

Article 71 protects continuity.

R6. Ordinance

Which statement is correct?

A. It needs both Houses dissolved B. It may be retrospective within constitutional limits C. It can amend the Constitution D. It can abridge Fundamental Rights

Answer: B.

Act-like force remains subject to the Constitution.

R7. Death clemency

Which is accurate?

A. Only Governor can pardon death B. Both can pardon death C. President can pardon; Governor cannot pardon but can commute D. Neither can act

Answer: C.

Separate pardon from lesser clemency forms.

R8. Own removal debate

While the VP's removal is under consideration, the VP:

A. Presides normally B. Has a casting vote C. Cannot participate at all D. May speak but cannot preside or vote

Answer: D.

Article 92 creates the special rule.

Original solved Mains practice

M1. "The Indian President is a constitutional sentinel, not an alternative executive." Examine. (10 marks, 150 words)

Model answer: Articles 53 and 74 create a deliberate duality: Union executive power is formally vested in the President, but is exercised on binding ministerial advice. The 42nd Amendment made advice expressly binding; the 44th permits one reconsideration, after which reiterated advice controls.

Therefore, in ordinary majority government the President cannot pursue an independent policy. Yet the office is not empty. Article 78 supports consultation and information; assent and reconsideration can force reflection; hung Lok Sabhas create bounded choices in appointing a Prime Minister; and disputed confidence must be tested on the floor. K. R. Narayanan's return of President's-Rule advice illustrates warning without final defiance.

Thus, the President protects constitutional process through questions, reasons and carefully bounded delay. The office is a sentinel because it preserves rules, but not an alternative executive because democratic responsibility remains with the Council of Ministers.

M2. Explain how the presidential election reconciles popular representation with federal balance. (15 marks, 250 words)

Model answer: India avoids both hereditary headship and direct presidential rivalry. Articles 54-55 create an indirectly elected President whose electoral college contains elected MPs and elected State, Delhi and Puducherry MLAs.

Popular representation enters because every elector is elected, while nominated members and MLCs are excluded. Federal balance enters through weighted MLA votes based on the 1971 population-to-elected-seat ratio. This creates relative uniformity within each State and comparative weight among States. The total MLA vote value is then divided across elected MPs of both Houses, seeking parity between the States collectively and Parliament collectively. PR-STV and secret preference voting require a winner to cross a majority quota rather than merely lead a fragmented field.

The design has limits: its arithmetic is complex, the 1971 freeze no longer reflects current population distribution, and indirect election weakens immediate public visibility. Yet automatic use of present population could penalise States that controlled population growth, while direct election could create a rival executive mandate.

The system therefore represents a constitutional compromise: democratic but mediated, national but federal, and majoritarian only after transferable preferences.

M3. Critically examine the President's veto powers after the 2025 Article 143 opinion on assent. (15 marks, 250 words)

Model answer: Article 111 allows assent, withholding and one return of a non-Money Bill. Re-passage binds the President. A Money Bill cannot be returned, while assent to a constitutional amendment is obligatory. Textual silence on time creates the pocket-veto possibility.

For a Governor-reserved State Bill, Article 201 permits assent, withholding or direction to return a non-Money Bill; unlike Article 111, State re-passage does not expressly bind the President. This can protect national constitutional concerns but also prolong federal uncertainty.

The Supreme Court's 20 November 2025 Article 143 opinion rejected rigid judicial timelines and automatic deemed assent, reasoning that courts cannot add constitutional consequences. Yet it did not constitutionalise indefinite inertia: glaring, prolonged and unexplained inaction remains open to limited intervention requiring a decision.

The opinion preserves separation of powers but shifts responsibility toward transparent constitutional conduct. Pocket veto should therefore be treated as a narrow consequence of text, not a routine political weapon. Reasons, expedition and parliamentary/federal accountability are preferable to either executive silence or judicial rewriting.

M4. Ordinance power is necessary for urgency but dangerous as a substitute for Parliament. Discuss. (15 marks, 250 words)

Model answer: Article 123 permits temporary legislation when both Houses are not simultaneously in session and immediate action is necessary. An ordinance has Act-like force, can amend a Central Act and operate retrospectively, but cannot exceed Parliament's competence, abridge Fundamental Rights or amend the Constitution.

Necessity supports the power: crises and legal gaps may arise between sittings. Democratic danger arises because promulgation precedes debate, committee scrutiny and bicameral approval. Re-promulgation can convert an emergency bridge into executive legislation.

The Constitution therefore requires laying before both Houses and makes the ordinance cease six weeks after the later reassembly date or earlier disapproval. *D. C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh* made laying mandatory, reaffirmed review and rejected automatic survival of benefits from every lapsed ordinance.

The appropriate response is not abolition but constitutional discipline: reasons demonstrating urgency, prompt parliamentary scrutiny, committee review and refusal to re-promulgate except on genuinely new circumstances. The power is valid when it bridges time; it becomes abusive when it bypasses representation.

M5. Compare the pardoning powers of the President and Governor and explain their judicial limits. (10 marks, 150 words)

Model answer: Article 72 empowers the President to grant pardon, reprieve, respite, remission or commutation in court-martial cases, Union-field offences and every death sentence. Article 161 gives the Governor corresponding authority over State-field offences but no court-martial power and no power to pardon a death sentence, though the Governor may suspend, remit or commute it.

Neither is personal mercy. *Maru Ram* binds both to ministerial advice. *Kehar Singh* allows executive reconsideration of merits without converting the President into an appellate court. *Epuru Sudhakar* permits limited judicial review for mala fides, arbitrariness, non-application of mind and relevant-material defects.

Thus, clemency is broader than ordinary adjudication but not above constitutionalism: jurisdiction differs, elected governments bear responsibility, and courts police the integrity rather than the merits of mercy.

M6. Evaluate the neutrality challenge facing the Vice-President as Chairman of Rajya Sabha. (10 marks, 150 words)

Model answer: Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha, a chamber representing States and revising national legislation. The Chairman maintains order, interprets rules, controls admissibility under House procedure, uses a casting vote under Article 100 and decides Rajya Sabha defection cases under the Tenth Schedule.

Neutrality is difficult because the Vice-President emerges from a political election while rulings affect government-opposition competition. Speaking opportunities, disciplinary action and timing of defection decisions can alter parliamentary outcomes. Legal safeguards include absence of a first vote, judicial review of Tenth Schedule decisions and Article 92's bar on presiding/voting during the Chair's own removal motion.

Yet law cannot manufacture trust. Consistent precedents, reasoned rulings and balanced enforcement are essential. The Chairman's formal power secures order; perceived impartiality secures legitimacy.

M7. Distinguish vacancy and removal rules for the President and Vice-President. Why do the differences matter? (10 marks, 150 words)

Model answer: The President is impeached under Article 61 for violation of the Constitution: either House may initiate, one-fourth must sign, 14 days' notice applies and both Houses require two-thirds of total membership. A presidential casual vacancy must be filled within six months; the Vice-President acts meanwhile.

The Vice-President is removed by a Rajya Sabha resolution passed by a majority of all then members and agreed to by Lok Sabha. Only Rajya Sabha initiates, no ground is stated and the process is not impeachment. A

Vice-Presidential casual vacancy is filled as soon as possible, without a six-month textual deadline; the successor receives a fresh five-year term.

The differences track function: presidential removal protects the Head of State through a very high threshold, while Rajya Sabha leads removal of its own presiding officer. The 2025 transition to C. P. Radhakrishnan illustrates Article 68's prompt-election rule.